

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patricia Schnupp	Team: Team # 4	CCRB Case #: 200703175	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/02/2007 3:50 PM	Location of Incident: 3/2/07: West 162nd Street and Ogden Avenue 4/17/07: 165th Street and Ogden Avenue		18 Mo. SOL 9/2/2008		Precinct: 44
Date/Time CV Reported Tue, 03/06/2007 4:26 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/06/2007 4:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rolando Carbonell	02708	928017	NARCB BX
2. POM Keith Ames	26993	929627	NARCB BX
3. SGT John Urena	03550	907485	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . POM Keith Ames	Abuse: PO Keith Ames stopped § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Rolando Carbonell	Abuse: PO Rolando Carbonell stopped § 87(2)(b)	B . Alleged Victim Uncooperative
C . POM Keith Ames	Abuse: PO Keith Ames stopped § 87(2)(b)	C . Alleged Victim Uncooperative
D . POM Rolando Carbonell	Abuse: PO Rolando Carbonell stopped § 87(2)(b)	D . Alleged Victim Uncooperative
E . POM Rolando Carbonell	Abuse: PO Rolando Carbonell frisked § 87(2)(b)	E . Alleged Victim Uncooperative
F . POM Rolando Carbonell	Abuse: PO Rolando Carbonell frisked § 87(2)(b)	F . Alleged Victim Uncooperative
G . POM Rolando Carbonell	Abuse: PO Rolando Carbonell searched § 87(2)(b)	G . Alleged Victim Uncooperative
H . POM Rolando Carbonell	Abuse: PO Rolando Carbonell searched § 87(2)(b)	H . Alleged Victim Uncooperative
I . POM Rolando Carbonell	Abuse: PO Rolando Carbonell stopped § 87(2)(b)	I . Unsubstantiated
J . POM Keith Ames	Abuse: PO Keith Ames stopped § 87(2)(b)	J . Unsubstantiated
K . POM Keith Ames	Abuse: PO Keith Ames frisked § 87(2)(b)	K . Unsubstantiated
L . POM Keith Ames	Abuse: PO Keith Ames searched § 87(2)(b)	L . Unsubstantiated
M . POM Rolando Carbonell	Discourtesy: PO Rolando Carbonell spoke obscenely and rudely to § 87(2)(b)	M . Unsubstantiated
N . SGT John Urena	Abuse: Sgt. John Urena authorized the strip-search of § 87(2)(b)	N . Substantiated
O . POM Keith Ames	Abuse: PO Keith Ames threatened to arrest § 87(2)(b) on April 17, 2007.	O . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Synopsis

On March 2, 2007 at approximately 3:50 PM § 87(2)(b), § 87(2)(b), and § 87(2)(b) were at a bus stop on West 162nd Street and Ogden Avenue when they were stopped by PO Rolando Carbonell and PO Keith Ames of Bronx Narcotics. PO Ames allegedly approached § 87(2)(b) and frisked and searched him while PO Carbonell allegedly frisked and searched § 87(2)(b) and § 87(2)(b) (Allegations A, B, C, D, E, F, G, H, I, J, K, and L). § 87(2)(b) claimed the officers did not ask for identification and no one was arrested or issued a summons at this time. PO Ames and PO Carbonell allegedly got into their unmarked vehicle to leave. § 87(2)(b) then took pictures of the unmarked vehicle the officers were in. PO Carbonell got out of their vehicle and followed after § 87(2)(b) who ran into a deli. PO Carbonell asked § 87(2)(b) if he was “threatening his fucking family” then arrested § 87(2)(b) § 87(2)(a) 160.50 § 87(2)(b) was taken back to the 44th Precinct where he was strip-searched by PO Carbonell on the authorization of Sgt. John Urena (Allegation N) § 87(4-b), § 87(2)(g)

On April 17, 2007, § 87(2)(b) was waiting outside of a restaurant on West 165th Street and Ogden Avenue when he saw PO Ames and PO Carbonell in a van across from the restaurant. PO Ames allegedly told § 87(2)(b) he was filing false complaints and if he filed another false complaint he would be arrested (Allegation O).

PO Carbonell claimed that he and PO Ames told § 87(2)(b), § 87(2)(b), and § 87(2)(b) to leave the corner twice before they actually stopped them for blocking pedestrian traffic. § 87(2)(b) and § 87(2)(b) missed numerous interviews and did not respond to any contact attempts. PO Ames stated he spoke with § 87(2)(b) and § 87(2)(b) § 87(2)(g)

Both officers stated § 87(2)(b) and his friends were blocking pedestrian traffic and PO Carbonell admitted to frisking and searching § 87(2)(b) after he was arrested due to lack of identification. PO Carbonell denied having any interaction with § 87(2)(b) and § 87(2)(b) PO Ames denied having any interaction with § 87(2)(b) and denied frisking or searching him. § 87(2)(b) however, claimed PO Ames frisked and searched him right away. § 87(2)(g)

In addition, PO Carbonell admitted to asking § 87(2)(b) if he was threatening his family, but stated this occurred while out on the street and denied that he cursed at § 87(2)(b) PO Ames also denied hearing any curse words. § 87(2)(g)

PO Carbonell did not recall if he strip-searched § 87(2)(b) and PO Ames did not have any knowledge of this strip-search. Sgt. Urena admitted he authorized this strip-search on his own, without anyone requesting it. Sgt. Urena stated he did this because people arrested in that area have been known to secrete contraband inside their bodies. § 87(2)(g)

§ 87(4-b), § 87(2)(g)

PO Carbonell recalled seeing § 87(2)(b) on April 17, 2007, in front of a restaurant his team was observing. PO Ames was working with PO Carbonell. PO Carbonell stated PO Ames told § 87(2)(b) and other people congregated on the corner to leave the area. PO Carbonell denied PO Ames threatened to arrest § 87(2)(b) PO Ames stated he was familiar with the location but did not recall seeing or interacting with § 87(2)(b) on this date. § 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) provided two statements regarding this incident, his initial complaint on March 6, 2007, and his sworn CCRB on April 18, 2007. § 87(2)(g)

CCRB Testimony(encl.7A-7D)

On March 2, 2007 § 87(2)(b) went into Pasquale’s Grocery Store on West 162nd Street to buy a Metrocard. § 87(2)(b) went outside and waited at the bus stop in front of the deli. § 87(2)(b) met

acquaintances § 87(2)(b) and § 87(2)(b). A black Jeep came down 162nd Street and Ogden Avenue and stopped in front of the bus stop. The driver, identified through the investigation as PO Keith Ames, rolled down the window and another officer, identified through the investigation as PO Rolando Carbonell, asked § 87(2)(b) what he was staring at, and § 87(2)(b) replied, "The sky!" PO Carbonell and PO Ames jumped out of the jeep. Both officers had NYPD windbreakers on. PO Ames frisked § 87(2)(b) and also stuck his hands inside of the § 87(2)(b) pockets. PO Carbonell frisked and searched § 87(2)(b) and § 87(2)(b). PO Carbonell and PO Ames never showed their badges or identified themselves as police officers, and they were only identified by the NYPD logo on their windbreakers. PO Ames and PO Carbonell got into the car to leave. § 87(2)(b) back was facing the street and he tried to turn around to watch the officers as they left. One of the officers, he did not remember which one, told § 87(2)(b) to turn back around. As the officers drove away, § 87(2)(b) used his cell phone to take a picture of the car and its license plate number.

§ 87(2)(b) went back inside Pasquale's Grocery and § 87(2)(b) and § 87(2)(b) left. A few moments later, PO Carbonell went inside the store and allegedly choked § 87(2)(b). § 87(2)(b) described this as PO Carbonell grabbing him from behind by the neck. PO Carbonell told § 87(2)(b) "Are you threatening my fucking family?" PO Carbonell said that the car was his personal car and he felt § 87(2)(b) was threatening his family by taking a picture of the car. PO Ames walked into the deli while PO Carbonell was talking with § 87(2)(b). PO Carbonell then told § 87(2)(b) to get into the Jeep and held his arm as he brought him there. PO Carbonell told § 87(2)(b) to put his hands on the headrest as if he was praying and § 87(2)(b) complied. There was no partition between the front and backseats. § 87(2)(b) said there were bulletproof vests and clothing items that said "narcotics" in the trunk.

PO Ames pulled into the parking lot of the 44th Precinct. PO Carbonell then came and opened the door for § 87(2)(b) and then put § 87(2)(b) in handcuffs. § 87(2)(b) stated the doors were "child-proof" locked and the door would not open from the inside. None of § 87(2)(b) property was vouchered in front of the desk. PO Carbonell then took § 87(2)(b) to a back cell. PO Carbonell took § 87(2)(b) jacket, shoelaces, hat, belt, money and cell phone. PO Carbonell told § 87(2)(b) to pull his pants and underwear down to his ankles and to pull his shirt up exposing his chest area. PO Carbonell told § 87(2)(b) to squat. PO Carbonell did not touch § 87(2)(b) body while his pants were down. PO Carbonell left § 87(2)(b) in that cell for about five minutes. PO Carbonell came back and put § 87(2)(b) inside a cell with other people for about forty-five minutes. PO Carbonell then took § 87(2)(b) to be fingerprinted and took his pedigree information. PO Carbonell then took § 87(2)(b) to a "radio room" where there were a bunch of walkie-talkies. PO Carbonell told § 87(2)(b) he should not give police officers a reason to arrest him and § 87(2)(b) told him he did not do anything. During this conversation, PO Carbonell pulled up his shirt and showed § 87(2)(b) what appeared to be stab marks on his chest. § 87(2)(b) said he knew they were stab marks because he has seen stab marks before. There were eleven stab marks on his chest and stomach. PO Carbonell showed § 87(2)(b) these marks and said "This is what I've been through", and told § 87(2)(b) shouldn't give the police a reason to bother him. § 87(2)(b) asked to get a desk appearance ticket but PO Carbonell refused. § 87(2)(b) repeatedly asked for property vouchers for his money and cell phone, but PO Carbonell ignored him. PO Carbonell told § 87(2)(b) that if he wanted to file a complaint PO Carbonell would have other officers "sit on him." § 87(2)(b) believed this meant PO Carbonell would have other police officers harass him. PO Carbonell told § 87(2)(b) that if he wanted to get his money and phone he would have to "get in blood." PO Carbonell then took § 87(2)(b) back to the cell. PO Carbonell also gave § 87(2)(b) his cell phone number. § 87(2)(b) stated he had "calmed down" and was not asking about his money and phone any more. PO Carbonell then came over and gave § 87(2)(b) a bottle of water and a bag of chips. Right before § 87(2)(b) was taken to Central Booking, PO Carbonell gave him \$17 of the \$217 that was taken from him. PO Ames and PO Carbonell took § 87(2)(b) to Bronx Central Booking. PO Carbonell was the passenger and he told § 87(2)(b) to call him when he was released to retrieve his belongings back. § 87(2)(b) stated that he did not give the police an alias while he was in custody. § 87(2)(b) never told the officers his name and he did not have any identification. The officers found out § 87(2)(b) identification from his fingerprints. § 87(2)(b)

IAB came to § 87(2)(b) house a few days after this incident. § 87(2)(b) was shown a photo array and he picked a picture of PO Carbonell. § 87(2)(e), § 87(2)(f)

On April 17, 2007 § 87(2)(b) was at a Crown Fried chicken on 165th Street and Ogden Avenue. § 87(2)(b) waited outside for his sandwich to be made. § 87(2)(b) saw the same black Jeep from the first incident pass. A gray “paddy wagon” type unmarked van pulled up and PO Carbonell and PO Ames exited the vehicle. PO Ames said, “Oh look who it is, it’s your friend!” PO Ames then said, “So you like filing false complaints! Make another false complaint and we will lock you up!” PO Carbonell then got on the radio. PO Ames then said, “If you are not buying anything from this chicken store get off this corner!” § 87(2)(b) went back into the store and waited for his sandwich to be made. The van waited outside the store. After a few minutes § 87(2)(b) saw the van leave and make a left on 165th Street and Summit Avenue.

Results of Investigation

Attempts to Contact

§ 87(2)(b) and § 87(2)(b) were also victims in this complaint. On March 8, 2007 § 87(2)(b) was contacted and he was with § 87(2)(b) and § 87(2)(b). All three men scheduled an interview on March 12, 2007. § 87(2)(b), § 87(2)(b) and § 87(2)(b) all failed to appear for their interview without calling to cancel or reschedule. § 87(2)(b) was contacted again on March 13, 2007 and an interview was scheduled with § 87(2)(b), § 87(2)(b), and § 87(2)(b) on March 14, 2007. On March 14, 2007 § 87(2)(b), § 87(2)(b), and § 87(2)(b) all failed to appear at the CCRB without calling to cancel or reschedule. § 87(2)(b) called the CCRB on March 16, 2007 and scheduled an interview for himself, § 87(2)(b) and § 87(2)(b) on March 19, 2007. On March 19, 2007 all three men failed to appear for their interview without calling to cancel or reschedule. On April 18, 2007, § 87(2)(b) along with his girlfriend § 87(2)(b), appeared at the CCRB for an interview regarding two other CCRB complaints, § 87(2)(b) and § 87(2)(b). It was not possible to obtain a phone number for § 87(2)(b) through Whitepages.com, the Cole’s directory, or the Lexis Nexis database. Letters were sent to § 87(2)(b) and § 87(2)(b) on March 13, 2007, May 16 and 22, 2007. Messages were left for § 87(2)(b) on May 16, 22, June 1, 6, and 21, 2007. On June 21, 2007 § 87(2)(b) scheduled an interview on June 25, 2007. On June 25, 2007 § 87(2)(b) failed to appear for a fourth interview without calling to cancel or reschedule.

To date, § 87(2)(b) and § 87(2)(b) have not made any attempts to contact the CCRB and none of the letters sent to their residences have been returned to the agency.

Identification of Officers Interviewed

PO Carbonell, PO Ames and Sgt. Urena were all interviewed regarding this incident. PO Carbonell was listed as § 87(2)(b) arresting officer on the date of this incident. PO Carbonell stated PO Ames was his partner on the date of this incident, which was confirmed on the Bronx Narcotics 44 module tactical plan. Sgt. Urena was also listed as the Sergeant assigned to the unit on the date of this incident. In addition all officers confirmed their involvement in this incident during their CCRB testimonies.

PO Rolando Carbonell

Memo Book (encl.8A-8B)

1630: One under Ogden & 162

John Doe/ § 87(2)(b)

Arrest Report (encl.18A-18F)

§ 87(2)(b), § 87(2)(a) 160.50

Criminal Court Complaint (encl. 19A-19B.)

§ 87(2)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Testimony(encl.9A-9C, 11A-11B)

On March 2, 2007, PO Carbonell was assigned to a Bronx Narcotics team in the 44th Precinct. The team served warrants and did buy and busts. When the team served warrants PO Carbonell was the person who knocked down the door and when the team did buy and busts PO Carbonell was assigned to the chase car. PO Ames was PO Carbonell's partner on this date during both buy and busts and when warrants were served. PO Carbonell was assigned to car § 87(2)(b) which is black Jeep Cherokee. This car is a department rental auto. PO Carbonell and PO Ames were both in plainclothes. PO Carbonell was interviewed at the CCRB on May 15, 2007. PO Carbonell was re-interviewed on October 24, 2007 as the strip-search allegation was not addressed during the initial interview. Both statements are summarized below, with any major discrepancies noted.

PO Carbonell was doing a buy and bust in the vicinity of 162nd Street and Ogden Avenue. There was a group of about 5 African-American males on the car and one of these men, later identified as § 87(2)(b) made the sound of a siren to indicate to people in the neighborhood that the police were present. These men on the corner were "hand-playing" what PO Carbonell described as horsing around and play fighting on the corner. PO Carbonell stated he has made numerous drug arrests on that corner and that area is known for crack-cocaine and marijuana. There were other narcotics officers in the vicinity since they all work a few blocks away from each other but PO Carbonell and PO Ames were the only officers on that particular block. After § 87(2)(b) made that sound some people started to leave the corner. PO Ames told the group to leave the corner. PO Ames was still inside the vehicle. Two people left the group and PO Carbonell and PO Ames left as well.

A few minutes later, PO Carbonell and PO Ames came back to the area but parked their car facing a different direction on Ogden Avenue. The remaining people in the group, including § 87(2)(b) were still there. The men were still horsing around in the middle of the sidewalk obstructing pedestrian traffic. At that time there was a mother with her children who had to walk around § 87(2)(b) into the street and the group since they were taking up the whole sidewalk. § 87(2)(b) pointed at PO Ames and PO Carbonell who were sitting in their car. At this time PO Carbonell and PO Ames exited their vehicle and went over to the group to get them to leave the area. PO Carbonell told the group to leave the area and § 87(2)(b) responded he did not have to leave the area since he was not doing anything wrong. The rest of the group left except for § 87(2)(b) and two other men. PO Carbonell and PO Ames got back into their vehicle and drove around the block.

When the officers came back, § 87(2)(b) and the two other men were still there. PO Ames and PO Carbonell exited their vehicle and asked § 87(2)(b) and the two other men for identification. PO Carbonell told the group he asked them to leave numerous times because they were blocking the sidewalk and now he needed to see their identification. Two of the men provided driver's licenses but PO Carbonell did not remember if he or his partner looked at them. § 87(2)(b) claimed he did not have any identification and refused to provide his name to PO Ames. PO Carbonell told the two men with identification to leave the corner otherwise they would be arrested for disorderly conduct. These two men left and were not frisked or searched. § 87(2)(b) said he did not have his identification because the police had taken it from him on a previous date. PO Carbonell entered his vehicle to call his boss, Sgt. John Urena, to see what they should do with § 87(2)(b) since he did not have identification. PO Ames was still on the sidewalk. While PO Carbonell was in the vehicle § 87(2)(b) went over to the vehicle and began taking pictures of the license plates saying things like "Now I know who you are. I can find out who your family is from this." PO Carbonell yelled "Come here, are you threatening my family?" from inside the vehicle. PO Carbonell did not curse at this time or at any time during this incident. § 87(2)(b) then ran into the grocery store on the corner. PO Carbonell chased § 87(2)(b) into the grocery store and caught up to him at the deli counter. PO

Ames was behind him. PO Carbonell grabbed § 87(2)(b) by the shirt collar and said “You’re under and you know why.” § 87(2)(b) was not choked and did not complain about having any difficulty breathing. PO Carbonell brought § 87(2)(b) outside the store, frisked him, searched him, and handcuffed him. PO Carbonell did not remember if he and PO Ames brought § 87(2)(b) back to the 44th Precinct or if the prisoner van transported him. PO Carbonell did not know if UF 250’s were filled out for the other two people that identification was taken from.

§ 87(2)(b) refused to identify himself back at the stationhouse. Sgt. Urena explained to § 87(2)(b) that if he did not identify himself he would be in jail a lot longer. Finally § 87(2)(b) provided the name § 87(2)(b). PO Carbonell tried to give § 87(2)(b) a DAT but it was denied because § 87(2)(b) gave the name § 87(2)(b) who is also known in “the system” as § 87(2)(b) and there was an open warrant for § 87(2)(b). § 87(2)(e), § 87(2)(f)

At no time did PO Carbonell tell § 87(2)(b) he was in possession of § 87(2)(b) cell phone and that if § 87(2)(b) wanted his cell phone returned he would have to “get it in blood.” PO Carbonell has 2 scars on his chest that he described as “keyloids” which were sustained during a stabbing. PO Carbonell did not show § 87(2)(b) these scars but they were discussed. § 87(2)(b) asked why the cops are always harassing people. PO Carbonell responded that they are trying to get weapons off the street and that he had already been stabbed twice on the job resulting in scars. PO Carbonell was asked why § 87(2)(b)’s cell phone and money were not vouchered. PO Carbonell responded that before § 87(2)(b) was handcuffed the officers asked him if he had anything on him. § 87(2)(b) took out his cell phone and money and called over to some guys on the corner. § 87(2)(b) gave these men his money and cell phone. PO Carbonell did not know if these were the same men that § 87(2)(b) was originally with when the incident began. PO Carbonell did not recall strip-searching § 87(2)(b). PO Carbonell did not ask his supervisor, Sgt. Urena, for authorization to strip-search § 87(2)(b). PO Carbonell was unaware if Sgt. Urena gave authorization to strip-search § 87(2)(b) to any other officer. PO Carbonell stated he was assigned to the chase car and the chase car does not normally conduct strip-searches. This is the job of the officers assigned to the prisoner van.

On April 17, 2007, PO Carbonell was doing buy and busts and was assigned to the chase car. PO Carbonell worked with PO Ames and both officers were in plainclothes. The officers were assigned to the prisoner van, which PO Carbonell believed was a white dodge van. PO Carbonell was the driver on the date of this incident.

PO Carbonell and PO Ames were on 165th Street and Ogden Avenue near a fried chicken location. There were some undercover officers in the area and observations of this restaurant were being done because it is a known drug location. All drugs are sold out of that restaurant. § 87(2)(b) was outside the restaurant and made the siren sound again. A bunch of guys ran from the corner after he did that. PO Ames told § 87(2)(b) and the remainder of the group to move from the corner. § 87(2)(b) and some other people then went into the fried chicken restaurant and § 87(2)(b) got on his cell phone. PO Carbonell believed that § 87(2)(b) was calling the CCRB. PO Carbonell did not tell § 87(2)(b) to stop filing false complaints and neither did his partner. PO Carbonell and PO Ames never got out of their vehicle and at no point did either officer threaten to arrest § 87(2)(b).

PO Keith Ames

Memo Book (encl.11A-11B)

PO Ames did not have any memo book entries regarding this incident.

CCRB Testimony (encl.12A-12B)

On March 2, 2007, PO Ames was assigned to Bronx Narcotics. PO Ames worked with PO Carbonell and both officers were in plainclothes and assigned to an unmarked black truck, the make and model which he did not remember. The narcotics team was serving warrants and doing buy and busts on the date of the incident. PO Ames was interviewed at the CCRB on June 15, 2007.

PO Ames and PO Carbonell were on the corner of West 162nd Street and Ogden Avenue doing an observation of the area since it is a known drug location. PO Ames observed a group of four males impeding pedestrian traffic corner for a few minutes. The group consisted of Hispanic and African-American males. PO Ames and PO Carbonell exited their vehicle and PO Ames had his shield displayed. PO Carbonell spoke with two of the men, and PO Ames spoke with the other two men. PO Ames stated the two men he spoke with were cooperative and explained that they live in the area. PO Ames asked the men if they had identification and they provided it. PO Ames did not frisk or search these two men or anyone else during this incident. PO Ames stated all the men were guilty of disorderly conduct but he used his discretion and did not arrest or summons these two men. After PO Ames finished speaking with the two men he went over to PO Carbonell who was in the process of handcuffing one of the men he was speaking with, later identified as § 87(2)(b). PO Carbonell did not use any force and § 87(2)(b) did not make any attempt to flee. PO Ames did not assist PO Carbonell in handcuffing § 87(2)(b). PO Ames did not have any interaction with § 87(2)(b). PO Ames did not see PO Carbonell frisk or search anyone at this incident location. PO Ames did not see PO Carbonell take § 87(2)(b) money or cell phone. PO Ames did not hear PO Carbonell use any foul language during this incident. PO Ames did not recall if § 87(2)(b) or anyone took a picture of their vehicle. § 87(2)(b) was transported back to the 44th Precinct. § 87(2)(e), § 87(2)(f) PO Ames did not have any interaction with § 87(2)(b) back at the station house and did not know if § 87(2)(b) was strip-searched. PO Carbonell stayed at the command since there was a warrant out for § 87(2)(b) arrest and PO Ames went back out with the rest of the narcotics team.

On April 17, 2007, PO Ames was assigned to Bronx Narcotics. PO Ames worked with PO Carbonell and both officers were in plainclothes. PO Ames did not know what kind of vehicle he was assigned to but it was most likely unmarked.

PO Ames did not recall interacting with § 87(2)(b) or seeing § 87(2)(b) on this date. PO Ames stated there is a Crown Fried Chicken on West 165th Street and Ogden Avenue and it is a known drug location that his team frequents. PO Ames stated the team was probably at that location at some point during the day but did not remember interacting with § 87(2)(b).

Sgt. John Urena

CCRB Testimony (encl.13A-13B)

On March 2, 2007, Sgt. Urena was the supervisor of a narcotics team that was doing buy and busts and observations within the confines of the 44th Precinct. Sgt. Urena did not remember who he was working with that day. Sgt. Urena was in plainclothes and was assigned to an unmarked Jeep, with § 87(2) as the last four digits of its license plate number. Sgt. Urena was interviewed at the CCRB on January 18, 2007.

Sgt. Urena was in the vicinity of 164th Street and Ogden Avenue conducting buy and busts with undercover. Sgt. Urena received a radio transmission from PO Ames and PO Carbonell that they had effected an arrest on 162nd Street and Ogden Avenue. When Sgt. Urena arrived § 87(2)(b) whose name was unknown at the time, was already in handcuffs. Sgt. Urena stated the officers informed him that § 87(2)(b) was videotaping them, and when they went to talk to him he ran away into a store. § 87(2)(b) was arrested § 87(2)(a) 160.50. Sgt. Urena stated as the supervisory officer, it is his job to verify all arrests made by members of his team. Sgt. Urena believed that the prisoner van came to transport § 87(2)(b) back to the 44th Precinct, but was not totally sure who transported him. Sgt. Urena stated § 87(2)(b) was non-compliant and cursing and continued to be non-compliant at the 44th Precinct. § 87(2)(b) refused to be fingerprinted. Sgt. Urena spoke to § 87(2)(b) in the holding cell and informed him that the officers would not be able to issue § 87(2)(b) a summons if he would not submit to fingerprinting. § 87(2)(b) was still non-compliant. Sgt. Urena did not recall PO Carbonell ever taking § 87(2)(b) into a side room or taking his shirt off in front of § 87(2)(b). § 87(2)(b) was eventually fingerprinted after he provided four false names. § 87(2)(b) calmed down after he was fingerprinted.

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Urena authorized a strip-search of § 87(2)(b) No officer requested this authorization. Sgt. Urena did not recall who actually conducted this strip-search but knew it was not him. Sgt. Urena had never seen § 87(2)(b) before and had no prior knowledge of § 87(2)(b) Sgt. Urena stated he authorized the strip-search because people in the area where § 87(2)(b) was arrested have been known to secrete contraband inside of their bodies. Sgt. Urena stated no contraband was found on § 87(2)(b) § 87(4-b), § 87(2)(g)

NYPD Documents

Roll Call (encl.14A-14D, 20A-20B)

On March 2, 2007, PO Carbonell and PO Ames were on duty from 7:33 AM to 4:00 PM. Sgt. Urena was on duty from 7:30 AM to 4:05 PM.

Tactical Plans (encl.15A, 21A)

On March 2, 2007, PO Carbonell was assigned to RAM/ cuff toss with PO Carmelo Perez who was assigned to bunker security. PO Carbonell is not listed on this tactical plan. On April 17, 2007 PO Ames and PO Carbonell were assigned to the prisoner van, which is described as a white Dodge.

Movement Log (encl.16A)

At 12:40 PM on March 2, 2007 PO Ames and PO Carbonell are listed as working together in the vicinity of the 44th Precinct.

Command Log (encl.17A)

PO Carbonell arrested a person listed as 'John Doe' at 4:37 PM on West 162nd Street and Ogden Avenue in the Bronx and was charged § 87(2)(a) 160.50. John Doe's address is listed as 'unknown-refused'. Sgt. Urena is listed as the supervisor verifying the arrest. John Doe was taken to Bronx Central Booking at 12:10 AM in RMP 1913.

IAB Log 07-09731

As of this date this case is still open and the disposition is pending.

Disposition of Arrest (encl. 23A-23D)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant/Victim Criminal Conviction History (encl. 24A-24T)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (encl. 5A)

§ 87(2)(b) has made 4 other CCRB complaints. § 87(2)(b)

Police Officer CCRB History (encl. 2A, 3A-3B, 4A)

PO Carbonell, with 6 years tenure, has one substantiated complaint, CCRB case number 200403560, in which he was cited for discourteous language. The board recommended command discipline and the

NYPD issued PO Carbonell instructions. Sgt Urena does not have any substantiated complaints in his 14 years as a police officer. PO Ames, with five years tenure, does not have any substantiated complaints.

Conclusions and Recommendations

Disputed/Undisputed Facts

It is not disputed that § 87(2)(b) was stopped by PO Ames and PO Carbonell on the date of this incident. § 87(2)(b) lack of identification is not disputed. It is also not disputed that § 87(2)(b) was strip-searched at the 44th Precinct.

§ 87(2)(b), § 87(2)(g)

Assessment of Evidence

§ 87(2)(b) claimed that PO Carbonell and PO Ames exited their vehicle and that PO Ames frisked and searched him, then left without any explanation. PO Ames and PO Carbonell allegedly returned later to follow § 87(2)(b) into a deli. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) PO Carbonell stated the officers told § 87(2)(b) and his friends to leave the area twice because they were blocking pedestrian traffic, which they refused to do, before the officers got out of their car and asked the men for identification. PO Ames testified the officers only interacted with § 87(2)(b) and his friends once, when they stopped § 87(2)(b) after observing him and his friends block pedestrian traffic. Both officers claimed that PO Carbonell dealt with § 87(2)(b) and PO Ames spoke with § 87(2)(b) and § 87(2)(b). § 87(2)(b) claimed to have spoken with PO Ames. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) claimed that he was frisked and searched by PO Ames. PO Ames denied doing this. PO Carbonell admitted to frisking and searching § 87(2)(b). However, PO Carbonell stated that this happened after he learned § 87(2)(b) did not have any identification. PO Carbonell claimed he called Sgt. Urena to determine what to do with § 87(2)(b) since they could not verify his identity. At this point, PO Carbonell alleged § 87(2)(b) took pictures of the unmarked vehicle and then fled into a store after PO Carbonell told § 87(2)(b) he wanted to talk to him. PO Carbonell stated he chased § 87(2)(b) into the store where he frisked and searched § 87(2)(b) before handcuffing him. PO Ames did not mention going into a store or § 87(2)(b) taking pictures of the unmarked vehicle. PO Ames did not see if PO Carbonell frisked or searched § 87(2)(b). Nevertheless, § 87(2)(b) claimed PO Ames frisked and searched him, something PO Ames flatly denied doing. While inside the store § 87(2)(b) alleged that PO Carbonell also used the word “fuck.” PO Carbonell denied doing this and PO Ames denied that either officer used foul language this incident. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) claimed he was strip-searched at the 44th Precinct by PO Carbonell. PO Carbonell had no recollection of this and denied requesting authorization to strip-search § 87(2)(b). PO Ames also did not know if § 87(2)(b) was strip-searched. Sgt. Urena stated that he authorized a strip-search of § 87(2)(b). Sgt. Urena stated no officer requested this authorization and he did this on his own. Sgt. Urena did not recall which officer he instructed to do this. Sgt. Urena claimed that he had arrested numerous people in the vicinity of West 162nd Street and Ogden Avenue and that people in this area have been known to secrete both drugs and weapons inside of their bodies. This is the reason Sgt. Urena instructed an unidentified officer to strip-search § 87(2)(b). § 87(2)(g)

§ 87(2)(g) The Patrol Guide states the following: “A strip-search will be utilized when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in clothing in such a manner that they may not be discovered by the previous search methods. Other factors that should be considered in determining the necessity for a strip-search include the nature of the crime (serious violent felony), arrest circumstances, subject’s reputation (extremely violent person), acts of violence, and discoveries from previous searches.” Sgt. Urena had not arrested § 87(2)(b) prior to this incident and had no prior knowledge of § 87(2)(b) and his past behavior. § 87(2)(b), § 87(2)(g)

PO Ames and PO Carbonell did not testify that they believed § 87(2)(b) had any contraband. § 87(2)(b) was stopped and subsequently arrested § 87(2)(a) 160.50. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) alleged that on April 17, 2007, PO Ames threatened to arrest him for filing false complaints in front of a fried chicken restaurant on West 165th Street and Ogden Avenue. PO Ames and PO Carbonell both denied that this occurred. According to the tactical plan, PO Ames and PO Carbonell were assigned to the prisoner van on that date. There was no stop and frisk report filled out on that date for § 87(2)(b). PO Carbonell and PO Ames both stated that this restaurant is a known drug location. PO Carbonell remembered seeing § 87(2)(b) hanging out in front of this chicken restaurant on the date of this incident. PO Carbonell claimed § 87(2)(b) made the ‘siren’ sound again and people started to move from the location. According to PO Carbonell, PO Ames told § 87(2)(b) and the other people congregated in front of the chicken restaurant and on the corner to leave. PO Ames did not remember seeing § 87(2)(b) that day but is familiar with the chicken restaurant and stated it was possible his team was in the area, although he could not specifically recall if he saw § 87(2)(b) on that date at that location. Both officers denied threatening to arrest § 87(2)(b). § 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) did allege that PO Carbonell choked him. However, § 87(2)(b) described this as PO Carbonell grabbing his neck from behind. § 87(2)(b) did not describe PO Carbonell grabbing the front of his neck. § 87(2)(b) also did not claim that he had difficulty breathing when PO Carbonell grabbed his neck from behind. § 87(2)(b), § 87(2)(g)

Allegation A: Abuse of Authority: PO Keith Ames stopped § 87(2)(b)

Allegation B: Abuse of Authority: PO Rolando Carbonell stopped § 87(2)(b)

Allegation C: Abuse of Authority: PO Keith Ames stopped § 87(2)(b)

Allegation D: Abuse of Authority: PO Rolando Carbonell stopped § 87(2)(b)

Allegation E: Abuse of Authority: PO Rolando Carbonell frisked § 87(2)(b)

Allegation F: Abuse of Authority: PO Rolando Carbonell frisked § 87(2)(b)

Allegation G: Abuse of Authority: PO Rolando Carbonell searched § 87(2)(b)

Allegation H: Abuse of Authority: PO Rolando Carbonell searched § 87(2)(b)

§ 87(2)(b) failed to appear for three scheduled interviews without calling to cancel or reschedule and did not respond to three letters sent to his home. These letters were not returned to the agency. All methods to obtain a phone number for § 87(2)(b) were exhausted with negative results. § 87(2)(b) failed to appear for four scheduled interviews without calling to cancel or reschedule and did not respond to four messages left on his voicemail. § 87(2)(b) also failed to respond to three letters sent to his residence. These letters were also not returned to the agency. § 87(2)(g)

Allegation I: Abuse of Authority: PO Rolando Carbonell stopped § 87(2)(b)

Allegation J: Abuse of Authority: PO Keith Ames stopped § 87(2)(b)

§ 87(2)(b) claimed that both PO Carbonell and PO Ames approached and stopped him at the same time, § 87(2)(g). Both officers stated that § 87(2)(b) was stopped after they observed him block pedestrian traffic on the corner of West 162nd Street and Ogden Avenue in the Bronx. § 87(2)(g)

PO Ames claimed § 87(2)(b) was stopped once while PO Carbonell stated § 87(2)(b)

§ 87(2) was asked to leave the corner twice before the officers stopped him and his friends and asked them for identification. § 87(2)(b) claimed he was stopped, frisked, and searched; the officers left, then came back and arrested him. § 87(2)(b), § 87(2)(g)

Allegation K: Abuse of Authority: PO Keith Ames frisked § 87(2)(b)

Allegation L: Abuse of Authority: PO Keith Ames searched § 87(2)(b)

§ 87(2)(b) alleged that he was frisked and searched by PO Ames while out on the street. PO Ames denied interacting with § 87(2)(b) at all. PO Ames claimed he only spoke with § 87(2)(b) and § 87(2)(b). § 87(2)(b), § 87(2)(g)

According to PO Ames he obtained identification for § 87(2)(b) and § 87(2)(b) warned them, and then turned around and § 87(2)(b) was already in handcuffs. PO Carbonell stated he frisked and searched § 87(2)(b) after he chased him into a deli. At that time § 87(2)(b) was going to be arrested. § 87(2)(b) stated PO Carbonell chased him into the deli, but did not mention that PO Carbonell frisked or searched him at that time. § 87(2)(g), § 87(2)(b)

Allegation M: Discourtesy: PO Rolando Carbonell spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) claimed PO Carbonell asked him if he was “threatening his fucking family” while inside the deli. PO Ames and PO Carbonell both denied this ever occurred. PO Carbonell admitted to asking § 87(2)(b) if § 87(2)(b) was “threatening his family” because § 87(2)(b) took pictures of his unmarked automobile. PO Carbonell stated he did this while out in the street. PO Ames did not recall if § 87(2)(b) took pictures of their car. Sgt. Urena testified that PO Carbonell told him that § 87(2)(b) took pictures of his car. PO Carbonell admitted he chased § 87(2)(b) into a deli in order to arrest him. PO Carbonell admitted he frisked and searched § 87(2)(b) but denied that he ever cursed at him. § 87(2)(g)

Allegation N: Abuse of Authority: Sgt. John Urena authorized the strip-search of § 87(2)(b)

§ 87(2)(b) alleged that PO Carbonell strip-searched him back at the 44th Precinct. PO Carbonell did not recall this and denied ever requesting such authorization. PO Ames also did not remember if § 87(2)(b) was strip-searched and there is no command log entry indicating that this occurred. Sgt. Urena admitted that he authorized the strip-search of § 87(2)(b) and that he forgot to make a command log entry. Sgt. Urena authorized this strip-search because other people arrested in the vicinity of West 162nd Street and Ogden Avenue have secreted contraband inside of their bodies. § 87(2)(b) was arrested § 87(2)(a) 160.50 and Sgt. Urena did not claim to have any prior knowledge of § 87(2)(b). § 87(2)(b) was uncooperative, did not have identification, and provided a false name. § 87(2)(b), § 87(2)(g)

The procedure for authorizing a strip-search is clearly outlined in Patrol Guide procedure 208-05. A strip-search can be justified if “the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in clothing in such a manner that they may not be discovered by the previous search methods. Other factors that should be considered in determining the necessity for a strip-search include the nature of the crime (serious violent felony), arrest circumstances, subject’s reputation (extremely violent person), acts of violence, and discoveries from previous searches.” § 87(2)(g)

According to OATH case 1189/90, NYPD v. Dowd (encl.), “an improper search or seizure is punishable misconduct if the officer acted with knowledge that he was acting improperly, acted without concern for

the propriety of his actions, or acted without due and reasonable care that his actions be proper.” [REDACTED]

§ 87(2)(g)

Allegation O: Abuse of Authority: PO Keith Ames threatened to arrest § 87(2)(b) on April 17, 2007.

§ 87(2)(b) alleged that PO Ames and PO Carbonell pulled up to him in front of chicken restaurant on West 165th Street and Ogden Avenue and yelled at him for “filing false complaints.” PO Ames allegedly told § 87(2)(b) he would be arrested he filed another false complaint. PO Carbonell and PO Ames both testified that they were familiar with this chicken restaurant since it is a known drug location and they have done observations there on previous dates. PO Carbonell and PO Ames were both working on this date and assigned to the prisoner van. PO Carbonell testified that he and PO Ames were doing observations near the chicken restaurant and he remembered seeing § 87(2)(b). PO Carbonell stated that PO Ames, while sitting in the van, told § 87(2)(b) and the other people congregated in front of the restaurant to move. PO Carbonell denied that PO Ames ever threatened to arrest § 87(2)(b) during this interaction. PO Ames only stated he was familiar with the chicken restaurant and did not recall being there on that date or interacting with § 87(2)(b) § 87(2)(b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: